

Uncollected Goods Regulation 2025

[2025-243]



New South Wales

Status Information

Currency of version

Current version for 30 May 2025 to date (accessed 19 December 2025 at 10:33)

Legislation on this site is usually updated within 3 working days after a change to the legislation.

Provisions in force

The provisions displayed in this version of the legislation have all commenced.

Notes—

- **Staged repeal status**

This legislation is currently due to be automatically repealed under the [Subordinate Legislation Act 1989](#) on 1 September 2030

Authorisation

This version of the legislation is compiled and maintained in a database of legislation by the Parliamentary Counsel's Office and published on the NSW legislation website, and is certified as the form of that legislation that is correct under section 45C of the [Interpretation Act 1987](#).

File last modified 30 May 2025

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Uncollected Goods Regulation 2025



New South Wales

Part 1 Preliminary

1 Name of regulation

This regulation is the *Uncollected Goods Regulation 2025*.

2 Commencement

This regulation commences on the day on which this regulation is published on the NSW legislation website.

Note—

This regulation repeals and replaces the *Uncollected Goods Regulation 2020*, which would otherwise be repealed on 1 September 2025 by the *Subordinate Legislation Act 1989*, section 10(2).

3 Definition

In this regulation—

the Act means the *Uncollected Goods Act 1995*.

Note—

The Act and the *Interpretation Act 1987* contain definitions and other provisions that affect the interpretation and application of this regulation.

Part 2 Uncollected goods for disposal

4 Other goods that are uncollected goods

(1) For the Act, section 5(2)(f), goods are also uncollected goods if—

- (a) one of the following persons reasonably believes the goods have been abandoned or left behind at a registrable boarding house—
 - (i) the manager of the registrable boarding house,
 - (ii) a proprietor of the registrable boarding house if no manager has been appointed for the boarding house, or

- (b) an association reasonably believes the goods have been abandoned or left behind on either of the following—
 - (i) a development lot or neighbourhood lot in a scheme,
 - (ii) association property, or
 - (c) a tenant reasonably believes the goods have been abandoned or left behind by a former co-tenant or former occupant of residential premises after the co-tenant or occupant has vacated the premises.
- (2) To avoid doubt, subsection (1)(b)(i) does not affect the requirement for the association to obtain the consent of the owner of the lot to enter and remove the uncollected goods from the lot.
- (3) A word or expression used in this section has the same meaning as in—
- (a) for subsection (1)(a)—the [Boarding Houses Act 2012](#), or
 - (b) for subsection (1)(b)—the [Community Land Management Act 2021](#), or
 - (c) for subsection (1)(c)—the [Residential Tenancies Act 2010](#).

5 Other personal documents

For the Act, section 22A(4), definition of **personal document**, paragraph (e), the following records are prescribed—

- (a) a medical record,
- (b) a legal document,
- (c) an employment reference, payment summary or other document relating to the depositor's employment history.

6 Act not available for disposal of certain uncollected goods

For the Act, section 6(2)(g), the following Acts are prescribed—

- (a) the [Companion Animals Act 1998](#),
- (b) the [Tow Truck Industry Act 1998](#).

Part 3 Miscellaneous

7 Time limits for applications for Tribunal orders

- (1) For the Act, section 31B(2), the following periods are prescribed—
- (a) for an application made under the Act, section 31B(1)(a) or (b)—

- (i) 60 days commencing on the relevant date if the uncollected goods are low value uncollected goods or medium value uncollected goods, or
- (ii) 90 days commencing on the relevant date if the uncollected goods are high value uncollected goods or personal documents,
- (b) for an application made under the Act, section 31B(1)(c) or (d)—180 days commencing on the relevant date.

(2) In this section—

relevant date means—

- (a) if notice was given under the Act, Part 3 to the depositor or person who has an interest in the uncollected goods—the date notice was given, or
- (b) otherwise—the date the uncollected goods were left in the possession of the receiver.

8 Repeal and savings

- (1) The *Uncollected Goods Regulation 2020* is repealed.
- (2) An act, matter or thing that, immediately before the repeal of the *Uncollected Goods Regulation 2020*, had effect under that regulation continues to have effect under this regulation.